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File No.: EXP202406070

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 9, 2024, a complaint was filed with registration number REGAGE24e00025957390 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the complained party and that the latter has installed a digital peephole with recording at the door of their residence, capturing communal areas without authorization from the Community of Owners, as it was established in the meeting dated February 5, 2024, that the installation of digital peepholes was not authorized for any neighbor and that those who had one installed were to proceed with its uninstallation.

Along with the complaint, the following documents are submitted:

Minutes of the community of owners of ***ADDRESS.1, including the one corresponding to February 5, 2024, with the aforementioned agreement not to authorize electronic peepholes with image recording of the common areas of the building and an order for the removal of existing ones as of the date of the minutes.

A video that claims to have been recorded by the digital peephole, which, according to the complainant, was provided by the complained party in a judicial proceeding in which they are involved.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on April 19, 2024, the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified through electronic headquarters on the same April 19, 2014, as evidenced by the acknowledgment of receipt in the file.

In response to this request, the complained party, on May 13, 2024, submitted the following statements:

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- Denies the existence of a digital peephole with image recording and asserts that "(...) what is installed at the door of the residence of the undersigned since they have lived there is an electronic peephole brand AYR model 756 that not only does not record images but also lacks a motion sensor, and needs to be activated from inside the residence by pressing a button to see who is at the door (...)."

- Furthermore, it states that the complainant "has urged the adoption of the agreement of the homeowners' meeting, informing its governing bodies that there was a digital peephole with image recording that captured communal areas, knowing that this is not true.

What does exist and has been submitted to the competent judicial bodies are recordings made by mobile phone devices both by the undersigned and their family as well as by the neighbor and hers, in the communal area corresponding to the landing of the stairs and the hallway between the entrance doors to both residences, in response to complaints filed by the neighbor and mother of their child at the times of drop-off and pick-up of the minor by both parents or their relatives.

Therefore, there is no digital peephole that records images installed at the access door to the residence owned by the undersigned, which is what underlies this complaint, assuming as true a fact

that cannot be substantiated in any case because it is not true.

What actually underlies this matter is a custody conflict over a minor with the neighbor of the adjacent apartment that is currently in litigation and awaiting an appeal judgment."

Along with their allegations, they attach a photograph of the digital viewer of the digital peephole.

THIRD: On July 9, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing, having passed three months since its submission.

FOURTH: The file contains the user manual for the digital peephole AYR model 756. It confirms that it does not record images, only allowing the visualization of the image for 10 seconds once the power button of the digital viewer is pressed.

FIFTH: On November 12, 2024, the complainant submitted a new document to the AEPD. In it, they reiterate that the digital peephole records images and attach photographs to indicate its location concerning their home, emphasizing that they must pass in front of it every day to enter and exit their residence.

Additionally, on November 22, 2024, they submitted another document accompanied by a letter signed by the administrator of the community of owners stating that the aforementioned community sent the complained party the agreement of February 5, 2024, without having received a response from them.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

Article 4.1 of the GDPR defines "personal data" as any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is considered to be anyone whose identity can be determined, directly or indirectly, particularly by means of an identifier, such as a name, identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Therefore, the physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, consequently, is subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data, stating:

"‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;"

Images generated by a system of cameras or video cameras are personal data, thus their processing is subject to data protection regulations.

In this case, however, it has not been established that the digital peephole installed by the respondent captures images and, therefore, that personal data processing is taking place.

III

Presumption of innocence

It should be noted that Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of presumption of innocence. Notably, Article 53.2 b) of the LPACAP recognizes the right of presumed offenders to "the presumption of no administrative liability until proven otherwise." Indeed, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the alleged conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In short, the application of the principle of presumption of innocence prevents attributing an administrative infraction when the existence of incriminating evidence supporting the facts that motivate this attribution has not been obtained and verified.

On the other hand, the documentation submitted to the competent administrative or judicial bodies by those who have standing would be legally protected not only when, if applicable, the personal data had been directly requested by those bodies, but also when, upon being submitted to the procedure, they had not been rejected by the competent body, which is the one that must assess their suitability. In this regard, the National Court has ruled, particularly in its judgment of February 5, 2021 (rec. 1045/2019).

IV

Conclusion

In this case, the complaint dated April 9, 2024, is examined, through which the "installation of a digital peephole without the consent of the Community of Property Owners" is reported. Furthermore, it is claimed that the peephole in question records images of common areas, which would imply the processing of personal data. To substantiate this, a video, allegedly obtained by this system (although the respondent denies it), has been presented in court as evidence to resolve a conflict of another nature."

In this regard, it is important to emphasize that a digital peephole is an electronic device that, instead of the conventional peephole, has a small camera and an LCD-type screen. Some models have the capability to record images or capture video.

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bursts of images and/or motion sensor, which allows them to be activated in case of remaining in the area close to their location. However, there are other models, such as the one indicated by the respondent, that act in all respects like a traditional peephole and only allow viewing images when the viewing device, which they usually include, is turned on.

The principle of the presumption of innocence prevents attributing an administrative infraction when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged offender's involvement in them. The application of the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the appreciation of the authorities or bodies called to resolve, destroys this presumption.

Therefore, based on what is indicated in the previous paragraphs, after analyzing the facts and evidence provided, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection or that justifies the removal of the installed

device from its current location.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing in accordance with the aforementioned, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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